

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 6, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Lawrence v. The Cape Series at Aliso Viejo Maintenance Corp. 2023-03134623	The Court will hear this matter as a status conference as a Notice of Withdrawal of the motions was filed on July 1, 2026.
3	Hong v. Indieworks Corp. 2024-01394470 Demurrer to first amended cross-complaint and Motion to strike portions of first amended cross complaint	The Court is ordering both motions be continued to a future date to be determined on July 6, 2026. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) Counsel for Plaintiff/cross-defendant Hong states he sent Defendant/cross-complainant's counsel a letter on 2/5/26 setting forth the grounds for demurrer. (Eghbali Decl., ¶¶ 4-6, Ex. A.) (ROA 370.) Counsel's letter requested Hong's counsel either stipulate to dismiss the First Amended Cross-Complaint against Hong with prejudice by 2/17/26 or Cross-defendant would file its demurrer. (Eghbali Decl., Ex. A.)

	Counsel stated Cross-defendant remains available to meet and confer by telephone. (Eghbali Decl., Ex. A.) Counsel states, "The issues raised in the February 5, 2026, meet-and-confer correspondence were not resolved so as to eliminate the need for the present demurrer." (Eghbali Decl., ¶ 9.) This does not satisfy the meet and confer requirement. Counsel does not state he actually met and conferred with counsel for Defendant/cross-complainant. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Plaintiff/cross-defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. MOTION NO. 2 – MOTION TO STRIKE PORTIONS OF FIRST AMENDED CROSS-COMPLAINT Before filing a motion to strike, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections raised in the motion. (Code Civ. Pro., § 435.5, subds. (a), (a)(2).) Counsel for Plaintiff/cross-defendant Hong states he sent Defendant/cross-complainant's counsel a letter setting forth grounds for a motion to strike. (Eghbali Decl., ¶¶ 4-6, Ex. A.) Counsel's letter requested IWC dismiss the FACC with prejudice by no later than 2/17/26, stated that absent dismissal, Hong would proceed with filing a motion to strike, and invited IWC's counsel to meet and confer telephonically. (Eghbali Decl., ¶ 5.) Counsel states "[t]he issues raised in the February 5, 2026 meet-and-confer correspondence were not resolved so as to eliminate the need for the present motion to strike. (Eghbali Decl., ¶ 10.) This does not satisfy the meet and confer requirement. Counsel does not state he actually met and conferred with counsel for Defendant/cross-complainant. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference
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		(email/letter is insufficient) concerning the issues raised in the motion to strike. Plaintiff/cross-defendant is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the motion to strike off-calendar.
4	Edwards v. Arpajian Enterprises, Inc. 2025-01530696 Motion to Compel Arbitration	The Court GRANTS Defendant's Motion to Compel Arbitration. The parties do not dispute the existence of an agreement to arbitrate. Defendant attached the Arbitration Provision (Provision) to its Motion. (Weber Decl., Ex. 2.) <u>Unconscionability:</u> Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (<i>Armendariz v. Foundation Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114 (<i>Armendariz</i>)). "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (<i>Ibid.</i>) "The party resisting arbitration bears the burden of proving unconscionability." (Pinnacle, supra, 55 Cal. 4th at p. 247.) <u>a. Procedural Unconscionability:</u> "Procedural unconscionability focuses on the elements of oppression and surprise." (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 177.) "Adhesion contracts are subject to scrutiny because they are not the result of freedom or equality of bargaining. However, they remain valid and enforceable unless the resisting party can also show that one or more of the contract's terms is substantively unconscionable or otherwise invalid." (<i>Ramirez v. Charter Commc'ns, Inc.</i> (2024) 16 Cal.5th 478, 492–93. Plaintiff's employment was conditioned on signing the Provision. Thus, Plaintiff has shown a moderate degree of procedural unconscionability. <u>b. Substantive Unconscionability:</u> "Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create 'overly harsh' or 'one-sided' results.'" (<i>Serafin v. Balco Properties Ltd., LLC</i> (2015) 235 Cal.App.4th 165, 177.) The Provision's scope encompassing "all claims and controversies ... relating to, or resulting from, or in any way arising out of the attached agreement" is not substantively unconscionable. (See, <i>Stoker v. Blue Origin, LLC</i> (2026) 120